

Stereo. H C J D A 38.
JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

W.P. No.5614/2017

Muhammad Nawaz **Versus** Director General Rescue 1122 and another

J U D G M E N T

Date of Hearing:	31.05.2021
Petitioner by:	Kh. Waseem Abbas, Advocate.
State by:	Mr. Asif Afzal Bhatti, Additional Advocate General. Mr. Sohail Tufail, Law Officer on behalf of respondent No.1.

Anwaar Hussain, J. By way of filing the instant writ petition, the petitioner assails the act of respondent No.1 to the effect of exclusion of petitioner's name from the final interview list on the basis of being overage by five days on closing date of the applications, given in advertisement published on 23.12.2016 regarding appointment against the post of Driver (BPS-4) in Rescue 1122, Government of the Punjab.

2. Briefly stated facts of the case as narrated in the present petition are that the petitioner, in pursuance of proclamation in newspaper dated 23.12.2016 regarding 34 posts of Driver (BPS-4), applied for the said post; he appeared in NTS Examination on 15.01.2017 and secured third position by obtaining 37 marks; subsequently passed the physical test held on 16.01.2017; the skill/driving test was also cleared by the petitioner; however, when the final list for interview of successful candidates scheduled to be held on 22.02.2017 was uploaded on internet, the name of the petitioner was not included therein. The petitioner was informed that since he was overage by five days on the closing date, i.e. 08.01.2017 as mentioned in the advertisement, he is not eligible for the appointment.

3. Report and para-wise comments filed by the respondents contemplate that during scrutiny of documents of the petitioner, he was found overage by five days as per criteria laid down for the post of Driver (BPS-4) and therefore, was not called for interview.

4. Learned counsel for the petitioner submits that the last date for submission of application was 08.01.2017 but the petitioner filed application on 28.12.2016; eleven days prior to the closing date and at that point of time, he was well within upper-age limit prescribed in the advertisement, i.e. 35 years, hence, eligible for appointment. He has placed reliance on the law laid down in Shazia Munawar v. Punjab Public Service Commission through Secretary (PLD 2010 Lahore 160).

5. Conversely, learned Law Officer argued that there is a clear cut-off date in the advertisement for submission of applications on the basis of which both the lower as well as the upper age limits were to be calculated. He avers that any candidate who is overage on the closing date is not eligible for appointment. Learned Law Officer refers to Rule 18(2) (ii) of the Punjab Civil Servants (Appointment and Conditions of Service) Rules, 1974 in this regard and also places reliance on Fayyaz Ali v. Province of Sindh through Chief Secretary and others (2015 PLC C.S.) 1014).

6. Arguments heard. Record perused.

7. The short legal question which requires adjudication by this Court is to examine importance of cut-off date for the purpose of determination of eligibility of a candidate in terms of his age and how the same is to be determined; and to see which date is relevant in this regard, i.e. the closing date for submission of application or the date when the application was actually made for the appointment by a candidate prior to closing date mentioned in the advertisement.

8. A cut-off date is fixed for fulfilling the prescribed qualification relating to age by a candidate for appointment and the effect of any

non-prescription has been dealt with by the Honourable Sindh High Court in case of Fayyaz Ali *supra*. It has been held that as a matter of policy or conceivably with a view to establish standards, *inter alia*, for age limit of the candidates, a cut-off date is fixed by the department while making recruitment. If a candidate does not fit the eligibility criteria mentioned therein as on the said cut-off date, he is not entitled to be considered for appointment. Rule 18(2) of the Punjab Civil Servants (Appointment and Conditions of Service) Rules, 1974 contemplates as under:

- “2(i) Where recruitment is to be made on the basis of a written examination, age shall be reckoned as on the first of January of the year in which the examination is proposed to be held; and
- (ii) in other cases, as on the last date fixed for submission of applications for appointment.”

(Emphasis provided)

9. While examining similar legal issue, the Indian Supreme Court has culled out the general principles for determining the cut-off date in number of cases which can be enumerated as under:

- i. The cut-off date by reference to which the eligibility requirement must be satisfied by the candidate seeking a public employment is the date fixed by the relevant service rules;
- ii. If there is no cut-off date fixed by the rules, then such date shall be as mentioned in the advertisement calling for applications; and
- iii. If there is no such date fixed, then the eligibility criteria shall be applied by reference to the closing date by which the applications were to be received by the authority.

Reference is drawn to the decisions in Ashok Kumar Sharma and others v. Chander Shekar and another (1997) 4 SCC 18), Bhupinderpal Singh and others v. State of Punjab and others (2000) 5 SCC 262) and Jasbir Rani and others v. State of Punjab and another (2002) 1 SCC 124).

10. In the instant case, advertisement was published on 23.12.2016, for appointment against the posts of Driver (BPS-4) which provides the last date for submission of applications as 08.01.2017. The criteria for the post of Driver mentioned in the advertisement is given as under:

“Middle with LTV/HTV License, (Preference shall be given to those who are matriculate), 2 years van driving experience. Age 22-35 years.”

(Emphasis supplied).

The advertisement also specifies that only completely filled online applications fulfilling the complete criteria shall be accepted and no relaxation in age or qualification (army/civil) shall be given. The advertisement clarifies that NTS shall allow the candidates to take written/physical tests provisionally subject to verification of records at the time of interview or even at later stage.

11. Perusal of record reveals that the petitioner's date of birth is 03.01.1982. As per petitioner's own contentions, he applied for the post of Driver (BPS-4) on 28.12.2016 whereas the closing date for submission of application was 08.01.2017. When the date of birth of the petitioner and closing date for submission of applications are put in *juxta position*, the age of the petitioner comes to 35 years and 5 days as on the closing date for submission of application.

12. Admittedly, the petitioner in the instant case is overage by five days when the cut-off date is taken as the closing date of application, i.e. 08.01.2017, in compliance with Rule 18(2)(ii) of the Rules *ibid*. Reliance placed on the case of Shazia Munawar *supra* by the petitioner's counsel is misconceived. In fact the same goes against

the petitioner inasmuch as that the cut-off date in the said case was taken as the closing date of application for the purpose of calculating the work experience and not the advertisement date or the date of submission of application by the petitioner therein.

13. For the foregoing reasons, the instant petition is devoid of any merit and hence, **dismissed** with no order as to costs.

(ANWAAR HUSSAIN)
Judge

Approved for reporting.

Judge

Akram